IVYN GABRIEL MBATHA
versus
CLOTHING INDUSTRY PENSION FUND
and
MERCY DARE N.O

HIGH COURT OF ZIMBABWE
MANZUNZU J
HARARE, 10 March & 29 July 2026

Court Application

T J Mafongoya, for the applicant
M Majogo, for the 1st respondent

MANZUNZU J:

INTRODUCTION

This is a court application for the registration of the second respondent's ruling in terms of s 128 of the Labour Act [*Chapter 28:01*] as a judgment of this court.

RELIEF SOUGHT

1. "The ruling of the second respondent involving the applicant and first respondent handed down on 21 December 2021, be and is hereby registered in terms of s 128 of the Labour Act [*Chapter28:01*] as a judgment of this court to the effect that:
   1.1 The first respondent shall pay the applicant 60 litres of fuel per week or the equivalent thereof in monetary terms (that is in United States Dollars or local currency equivalent) calculated from November 2009 to the date of judgment to this honourable court.
   1.2 The first respondent shall reinstate the applicant's private medical aid benefit.
   1.3 The first respondent shall provide the applicant with a twin-cab motor vehicle for both business and private use.
2. The first respondent shall pay the costs of this application if it opposes this application."

BACKGROUND

The applicant is a male adult who is employed as a Senior Pension Officer by the first respondent.

The first respondent is, Clothing Industry Pension Fund, a pension fund duly registered in terms of the laws of Zimbabwe. The second respondent is Mercy Dare, a labour officer who previously handled the matter between the applicant and the first respondent at the conciliation level at the Ministry of Public Service, Labour and Social Welfare.

In December 2008, the applicant approached a Labour officer and complained about unfair labour practices, alleging unlawful transfer and the unilateral withdrawal of contractual benefits such as medical aid, parking discs, vehicle repairs and fuel. On 8 April 2009 an arbitral award was granted in the applicant's favour. The first respondent was directed to reinstate the withdrawn contractual benefits. On 16 July 2009 the first respondent wrote a letter undertaking to fully comply with the arbitral award. The first respondent also offered contractual benefits which included 60 litres of fuel and entitlement to a second-hand twin cab vehicle inclusive of unconditional travel within Zimbabwe. The applicant would also be at liberty to take advantage of the organisation's policy of buying the car after using it for a period of 5 years and that salary discrepancies would be corrected.

The first respondent failed to fully comply with the arbitral award. The applicant then referred the matter to the second respondent, where the applicant complained about unfair labour practice by the first respondent. After failed conciliation, the second respondent handed down a draft ruling in favour of the applicant on 21 December 2021. On 17 June 2022, the second respondent filed an application for confirmation of the draft ruling in the Labour Court under case number LCH519/2. The first respondent raised a preliminary point and alleged that the application for confirmation had prescribed. Under judgment LCH371/22 the Labour Court dismissed the point of prescription. The first respondent then appealed to the Supreme Court under case number SC179/23; the Supreme Court dismissed the appeal under judgment number SC47/24. The first respondent then filed an application for leave for direct access in the Constitutional Court under case number CCZ 34/24 and by consent the matter was referred to the Supreme Court. The first respondent withdrew the matter from the Supreme Court before citing changes in the labour laws.

The applicant now makes an application in terms of s 128 of the Labour Act [*Chapter 28:01*], seeking the registration of the judgment of the Labour Officer. The first respondent raised a preliminary point alleging that the applicant has no *locus standi* to bring this application before this honourable court. The preliminary point was dismissed by this court.

It is not in dispute that there is an extant judgment of the Labour Officer. That this court is also an appropriate court is not in dispute. The court now determines whether or not the judgment of the Labour Officer should be registered in terms of s 128 of the Labour Act [*Chapter 28:01*].

THE LAW

Section 128 reads:

> "128 Transitional provisions
> (1) Where a labour officer made a draft ruling in terms of s 93(5)(c) and for what reason, the draft ruling was not registered with the Labour Court in terms of s 93(5a) and (5b) of they replaced provisions, such draft ruling shall automatically be deemed to be a judgement or ruling of the Labour Officer which for execution purposes shall be registered in the appropriate court:
> Provided an employer shall have a right of appeal of the Labour Court within 30 days after notice of registration.
> (2) The quantum shall be calculated based on the currency in which the judgement was made and payable in Zimbabwean currency at the prevailing official rate."

In *Olympo & Ors* v *Shomet Industrial Development* HH191-12 the court noted the purpose of registering arbitral awards. It stated that:

> "…The registration of an arbitral award does not in any way affect the substantive rights of the parties concerned. The purpose of registration is merely to facilitate the enforcement of such an order through the mechanism availed to the High Court or the magistrate court, namely the office of the Deputy Sheriff or the messenger of court, respectively. Thus, whether registered or not, an arbitral award remains binding on the parties who may fulfil its terms even in the absence of registration. Where one of the parties is reluctant to fulfil his obligations in terms of the award, the legislature through s 98 (14) of the Labour Act, has provided for its registration with those clothed with the power to enforce judgment in order that the aggrieved party may through the powers given to such courts, enforce the award."

The court also stated the requirements for registration of an arbitral award were stated:

> " In an application such as the present this court is not required to look at the merits of the award – all that is required of this court is that it must satisfy itself that the award was granted by a competent arbitrator, that the award sounds in money, that the award is still extant and that it has not been set aside on review or appeal and that the litigants are the parties the subject of the arbitral award. There must also be furnished a certificate given under the hand of the arbitrator validating the arbitral award…
> For as long as the arbitral award has not been suspended or set aside on review or appeal in terms of the Labour Act, there is no basis upon which this court may decline its registration."

In *Biltrans Services (Pvt) Ltd* v *The Minister of Public Service, Labour and Social Welfare and Ors* CCZ16-2016, the court noted that registering an arbitral award is not merely a clerical function, but an enforcement mechanism. The court noted that:

> "In registering an arbitral award, the High Court and the Magistrates Court are not carrying out a mere clerical function. While the registering Court may not go into the merits of the award, since its duty is to provide an enforcement mechanism and not to usurp the powers of the Labour Court, it must be satisfied before registering an award that all the necessary formalities have been complied with."

The court in *Biltrans Services (Pvt) Ltd supra* summarised the requirements for the registration of an arbitral award. It stated;

> "The requirements that must be satisfied before the High Court or the Magistrates Court grants an application for registration of an award are:
> a. The award must have been granted by a competent arbitrator.
> b. The award must sound in money.
> c. The award is still extant and has not been set aside on review or appeal.
> d. The litigants are the parties to the award.
> e. The award must be certified as an award of the arbitrator."

ANALYSIS

The applicant makes an application that the judgment or ruling by the labour officer be registered by this honourable court. The second respondent filed an application for confirmation of the draft ruling in the Labour Court under judgment LHC371-22 in terms of the law. The order of the Labour court is still extant, and this is not disputed.

From the above cited authorities, it is accepted that the main function of this court is to register an arbitral award for the purposes of enforcement. Judicial intervention with regards to arbitral awards is limited; see *Clovegate Elevator Company (Pvt) Ltd* v *Justice Mtshiya & Anor* SC104-24. The requirements that must be satisfied for an arbitral award to be registered have been met. The application must therefore succeed.

DISPOSITION

1.The ruling of the second respondent involving the applicant and first respondent handed down on 21 December 2021, be and is hereby registered in terms of s 128 of the Labour Act [*Chapter28:01*] as a judgment of this court to the effect that:

1.1 The first respondent shall pay the applicant 60 litres of fuel per week or the equivalent thereof in monetary terms (that is in United States Dollars or local currency equivalent) calculated from November 2009 to the date of judgment to this honourable court.

1.2 The first respondent shall reinstate the applicant's private medical aid benefit.

1.3 The first respondent shall provide the applicant with a twin-cab motor vehicle for both business and private use.

2. The first respondent shall pay the costs of this application.

MANZUNZU J……..

……,Applicant's Legal Practitioners
……, First Respondent's Legal Practitioners